



Commercial Machine Sale Agreement

Reusable order form, sale terms, and operating exhibits

This Commercial Machine Sale Agreement (the “Agreement”) is entered into as of the Effective Date in the Order Form by TGPACI LLC dba Bloomjoy Sweets (“Bloomjoy”), and the buyer identified in the Order Form (“Buyer”). The Order Form, these Standard Terms, and all attached exhibits are one agreement. If they conflict, the Order Form controls for that transaction, followed by the exhibits and then the Standard Terms.

Complete every applicable unfilled field before signature. Delete any option that does not apply.

PART I — ORDER FORM

Agreement / Quote No.	
Effective Date	
Seller	TGPACI LLC dba Bloomjoy Sweets (“Bloomjoy”)
Bloomjoy notice address	266 Thompson Ave, Mountain View, CA 94043
Bloomjoy notice email	legal@bloomjoysweets.com
Buyer legal name	
Buyer notice address	
Buyer notice email	
Buyer billing contact	
Buyer delivery contact	

1. Equipment and Price

Item	Description / configuration	Qty.	Unit price	Extended price
Commercial Machine				
Custom wrap	☐ Not included ☐ Included; artwork requirements attached			
Opening supplies				
Freight / delivery		—	—	
Sales or use tax		—	—	
TOTAL PURCHASE PRICE				

2. Payment Schedule

Payment	Amount	Due
Order deposit	50%: \$	At signing / purchase
Delivery balance	50% plus approved adjustments: \$	Within business days after Confirmed Delivery
Payment / invoice instructions		

Deposit treatment — select one: ☐ Refundable until Bloomjoy commits the order to production, less documented nonrecoverable costs. ☐ Nonrefundable upon receipt. ☐ Other: .

3. Delivery and Commissioning

Delivery point	
Requested delivery window	
Delivery method / Incoterm	
Included installation support	
Included training	
Acceptance review period	business days after Confirmed Delivery
Balance timing override	

4. Warranty, Support, and Optional Services

Limited warranty term	
Manufacturer support	24/7 first-line remote technical support via WeChat, subject to manufacturer availability and policies
Bloomjoy included support	Onboarding and reasonable escalation coordination during U.S. business hours, as described in Exhibit B
Bloomjoy Plus	Not included. Optional, separately purchased, and governed by the online terms described below.
Additional paid services	
Special terms / agreed exceptions	None

5. Signatures

Each signer represents that the signer is authorized to bind the identified party. Electronic signatures and counterparts are effective.

TGPACI LLC dba Bloomjoy Sweets

By:
Name:
Title:
Date:

BUYER:

By:
Name:
Title:
Date:

PART II — STANDARD TERMS

1. Sale and Purchase. Bloomjoy will sell, and Buyer will purchase, the equipment and included items listed in the Order Form (collectively, the “Equipment”). No product, service, location, territory, permit right, revenue opportunity, or exclusivity is included unless expressly listed. Buyer is acquiring the Equipment for commercial use and has independently evaluated its business plan, site, and expected economics.

2. Price, Taxes, and Payment. Buyer will pay the Total Purchase Price on the schedule in the Order Form. The initial payment is a deposit applied to the purchase price; its refundability is governed by the selected deposit treatment. Buyer is responsible for sales, use, excise, and similar transaction taxes, excluding taxes on Bloomjoy’s net income. Approved change orders, carrier adjustments, storage, redelivery, and buyer-caused accessorial charges may be added to the final invoice. Overdue amounts accrue interest at the lesser of 1.0% per month or the maximum lawful rate, plus reasonable collection costs. Buyer may not set off unrelated claims against an amount due.

3. Order Changes and Cancellation. Changes require written approval and may affect price and schedule. If Buyer cancels after Bloomjoy or its supplier commits the order, Buyer is responsible for documented nonrecoverable production, customization, freight, storage, and cancellation costs, subject to the deposit treatment in the Order Form. Bloomjoy will return any remaining refundable balance after those amounts are determined.

4. Delivery; Confirmed Delivery. Delivery dates are good-faith estimates unless the Order Form expressly states a guaranteed date. “Confirmed Delivery” occurs when the Equipment is physically tendered at the Delivery Point and Buyer signs the Delivery and Commissioning Certificate, or when Buyer receives the Equipment and does not provide a written notice of material shipping damage or a material quantity discrepancy within two business days. A commissioning item that does not prevent delivery does not postpone Confirmed Delivery unless the Order Form expressly says otherwise. Buyer will provide safe access, an authorized recipient, and any required unloading assistance. Re-delivery or storage caused by Buyer is chargeable to Buyer.

5. Risk of Loss; Title; Security Interest. Risk of loss passes to Buyer at Confirmed Delivery, except to the extent a carrier claim is controlled by Bloomjoy under the selected delivery method. Title passes only after Bloomjoy receives all amounts due for the Equipment. Until then, Buyer grants Bloomjoy a purchase-money security interest in the Equipment and its proceeds, will keep the Equipment identifiable and free of other liens, and authorizes Bloomjoy to file financing statements reasonably necessary to perfect that interest. Buyer may operate the Equipment in the ordinary course but may not sell, pledge, or relocate it outside the United States without Bloomjoy’s written consent before full payment.

6. Inspection and Acceptance. Buyer will inspect promptly. Visible damage, missing items, and material delivery discrepancies must be listed on the Delivery and Commissioning Certificate. Buyer has the Acceptance Review Period to report a material nonconformity in reasonable detail with photographs, video, logs, or other available evidence. Bloomjoy may inspect and, at its option, repair, replace, complete, or credit the affected item. Acceptance does not waive latent defects or an express warranty claim. A minor punch-list item does not permit rejection of the Equipment or withholding of the entire delivery balance.

7. Site Readiness and Installation. Buyer is responsible for preparing the site before delivery, including approved electrical service, stable network connectivity, level floor space, ventilation and clearances, venue authorization, sanitation access, loading access, and all permits not expressly covered by a separate signed agreement. Bloomjoy is not responsible for delay, damage, or service failure caused by an unready site, unauthorized installation, incompatible service, or Buyer’s contractors. Services beyond those listed in the Order Form require a written change order.

8. Embedded Software and Connectivity. The Equipment may contain firmware, operating software, design files, cloud connectivity, payment integrations, and third-party services ("Embedded Software"). Subject to full payment and compliance with this Agreement, Buyer receives a nonexclusive, nontransferable right to use the Embedded Software solely with the Equipment for its intended commercial operation. The Embedded Software is licensed, not sold. Buyer may not copy, reverse engineer, bypass controls, introduce malicious code, use unauthorized software that creates a safety or compatibility risk, or use the Embedded Software to develop a competing product, except to the limited extent a restriction is prohibited by law. Manufacturer, payment processor, connectivity, and other third-party terms may also apply. This Section does not require Buyer to purchase Bloomjoy Plus.

9. Bloomjoy Plus Is Separate and Optional. Bloomjoy Plus is not a license fee, royalty, or condition of Equipment ownership. Buyer may subscribe or cancel through Bloomjoy's website at then-current pricing and terms. A cancellation is effective at the end of the paid billing period, and fees are not prorated or refunded unless required by law or the online terms state otherwise. Current information is available at <https://www.bloomjoyusa.com/plus>, <https://www.bloomjoyusa.com/terms>, and <https://www.bloomjoyusa.com/billing-cancellation>. A later Plus subscription does not amend this Agreement.

10. Permits and Legal Compliance. Except under a separate Permitted Operations and Commissary Agreement and an active site schedule, Buyer is solely responsible for permits, food-safety approvals, commissary arrangements, taxes, licenses, accessibility, zoning, venue rules, and other legal requirements for possession and operation. No permit is sold, transferred, leased, or granted under this Agreement. Buyer will not represent that Bloomjoy's permit or commissary agreement covers a site or operator without a separate written activation signed by Bloomjoy and any approvals required by the applicable authority.

11. Branding and Custom Artwork. Each party retains its names, logos, and other intellectual property. Buyer grants Bloomjoy and its vendors a limited right to reproduce Buyer-approved artwork solely to produce the ordered wrap or materials. Buyer represents that it has rights to supplied artwork and will indemnify Bloomjoy against a third-party claim arising from that artwork. Buyer may display Bloomjoy branding already affixed to the Equipment but receives no franchise, trademark system, exclusive territory, or right to hold itself out as Bloomjoy's agent. Any broader brand license must be in a separate writing.

12. Care, Maintenance, and Records. Buyer will operate, clean, maintain, and secure the Equipment according to manuals, training, safety notices, and applicable law; use compatible supplies; maintain transaction and service records reasonably needed for support; and promptly stop operation if a condition may threaten health, safety, property, or the Equipment. Buyer is responsible for unauthorized modifications, misuse, vandalism, pests, unsuitable power, network interruption, and ordinary wear unless an express warranty provides otherwise.

13. Limited Warranty and Support. The express warranty and support commitments are limited to the Order Form and Exhibit B. Except for those express commitments and to the maximum extent permitted by law, the Equipment, Embedded Software, and services are provided without other warranties, including implied warranties of merchantability, fitness for a particular purpose, noninfringement, uptime, profitability, or suitability of a site. Some jurisdictions do not allow particular exclusions, so an exclusion applies only to the extent lawful.

14. Confidentiality. Each party will protect the other's nonpublic business, technical, pricing, customer, and security information using reasonable care and use it only for this transaction. This duty does not cover information that is public without breach, already lawfully known, independently developed, or rightfully received without restriction. A required disclosure is permitted if the receiving party gives prompt notice when lawful and reasonably limits the disclosure. Trade-secret obligations survive while the information remains a trade secret; other confidentiality obligations survive three years.

15. Mutual Indemnity. Each party will defend and indemnify the other and its personnel from a third-party claim to the extent caused by the indemnifying party's negligence, willful misconduct, violation of law, or material breach. Buyer's obligation also covers Buyer's operation, products, venue, employees, contractors, and customer claims, except to the extent caused by a covered defect for which Bloomjoy is responsible. Bloomjoy's obligation also covers a claim that Bloomjoy-provided branding or materials, used as authorized, infringe a U.S. intellectual-property right. The indemnified party must provide prompt notice, reasonable cooperation, and control of the defense, but no settlement may admit fault or impose a nonmonetary obligation on it without consent.

16. Limitation of Liability. To the maximum extent permitted by law, neither party is liable for lost profits, lost revenue, loss of data, business interruption, or indirect, incidental, special, exemplary, or consequential damages arising from this Agreement, even if advised they were possible. Bloomjoy's aggregate liability arising from the sale will not exceed the Total Purchase Price actually paid. These limits do not apply to payment obligations, misuse of the other party's intellectual property, breach of confidentiality, indemnification obligations, fraud, gross negligence, willful misconduct, or liability that cannot lawfully be limited.

17. Default and Remedies. A party is in material default if it fails to cure a material nonpayment breach within 10 days after written notice or another material breach within 30 days after written notice, or becomes subject to an insolvency proceeding not dismissed within 60 days. If Buyer does not pay the delivery balance when due, Bloomjoy may suspend nonessential services, pursue the Equipment and proceeds as a secured party, or exercise other lawful remedies. Remedies are cumulative. Neither party is required to continue performance when doing so would violate law or create an immediate safety risk.

18. Force Majeure. Neither party is liable for delay caused by an event beyond its reasonable control, including supplier interruption, carrier delay, port disruption, labor action, natural disaster, epidemic, government action, utility failure, or cyberattack, if it promptly gives notice and uses commercially reasonable efforts to mitigate. This Section does not excuse payment for Equipment already delivered.

19. Governing Law and Forum. California law governs without regard to conflict-of-law rules, and the parties consent to the exclusive state and federal courts located in Santa Clara County, California, unless the Special terms / agreed exceptions in the Order Form expressly state otherwise. Before filing a claim other than for emergency injunctive relief or collection of an undisputed amount, an executive from each party will attempt in good faith to resolve the dispute for at least 15 days after written notice.

20. General. The parties are independent contractors. Neither may bind the other. Buyer may not assign this Agreement before full payment without Bloomjoy's written consent; Bloomjoy may assign it to an affiliate or in connection with a sale of substantially all relevant assets. Notices must be sent to the Order Form contacts by personal delivery, nationally recognized overnight service, certified mail, or email with confirmation of receipt. Waivers must be written. If a provision is unenforceable, it will be modified to the minimum extent necessary and the remainder will continue. This Agreement is the complete agreement for the sale and may be amended only in a signed writing, except that applicable third-party service terms may update under their own terms. Headings are for convenience. Counterparts and electronic signatures are valid. Sections that by their nature should survive will survive, including payment, title and security interest, intellectual property, confidentiality, indemnity, liability limits, and dispute terms.

EXHIBIT A — EQUIPMENT AND DELIVERY SPECIFICATIONS

Agreement / Quote No.	
Machine model	
Quantity	
Serial number(s)	
Cabinet finish / wrap	
Payment reader / processor	
Connectivity	
Electrical requirements	
Dimensions / weight	
Included accessories	
Included opening supplies	
Documentation / credentials	
Packaging / freight	
Unloading responsibility	
Installation responsibility	
Commissioning test	

Approved Attachments

- ☐ Final quote or invoice
- ☐ Final wrap proof and approved artwork
- ☐ Confirmed manufacturer specification sheet
- ☐ Freight quote and delivery instructions
- ☐ Additional written scope or change order

EXHIBIT B — LIMITED WARRANTY AND SUPPORT

1. Warranty Term. The limited warranty begins on [] and continues for the period stated in the Order Form. Any “up to” public warranty statement is not a substitute for the completed Order Form.

2. Covered Defects. During the warranty term, Bloomjoy will coordinate the manufacturer-backed repair or replacement process for a material defect in parts or workmanship under normal intended use. The remedy may include remote diagnosis, software adjustment, shipment of a replacement part, or another commercially reasonable correction. Replaced parts may be new or functionally equivalent.

3. Exclusions. The warranty does not cover consumables, ordinary wear, cosmetic conditions that do not impair operation, improper cleaning, unauthorized repair or modification, incompatible supplies, vandalism, pests, accident, unsuitable power or network service, environmental conditions, relocation damage, failure to follow manuals or safety instructions, or a third-party payment or connectivity service.

4. Claim Process. Buyer will stop use if continued operation may worsen damage or create a safety risk; contact the designated manufacturer support channel; provide the serial number, photographs or video, logs, and requested diagnostic information; and reasonably cooperate with remote troubleshooting. Buyer must notify Bloomjoy at [] if escalation or parts coordination is needed.

5. Labor, Travel, and Shipping. Included labor, freight, duties, travel, and on-site services are limited to: []. Any amount not expressly included requires Buyer approval before charge, except reasonable emergency measures requested by Buyer.

6. Support Boundaries. The manufacturer provides first-line technical support through its designated 24/7 WeChat channel, subject to actual availability, time zone, and issue context. Bloomjoy provides onboarding guidance and reasonable escalation coordination during U.S. business hours. Bloomjoy does not promise continuous uptime, a fixed response time, or on-site service unless the Order Form states otherwise.

7. Bloomjoy Plus. Optional Bloomjoy Plus training, playbooks, portal features, or concierge benefits are governed only by the online subscription terms. Subscription status does not expand or reduce the express machine warranty unless a signed order expressly says so.